

LEGISLATURE OF NEBRASKA  
ONE HUNDRED NINTH LEGISLATURE  
SECOND SESSION

**LEGISLATIVE BILL 721**

Introduced by Quick, 35.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Intergenerational Care Facility
- 2 Incentive Grant Program; to amend section 81-3145, Reissue Revised
- 3 Statutes of Nebraska; to change provisions related to eligibility
- 4 for grants as prescribed; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1           **Section 1.** Section 81-3145, Reissue Revised Statutes of Nebraska, is  
2 amended to read:

3           81-3145 (1) The Intergenerational Care Facility Incentive Grant  
4 Program is created. It is the intent of the Legislature to appropriate  
5 three hundred thousand dollars from the Medicaid Managed Care Excess  
6 Profit Fund for fiscal year 2024-25 to the Department of Health and Human  
7 Services to provide grants pursuant to this section.

8           (2) The Department of Health and Human Services shall develop  
9 requirements for eligibility, application, and audits for grants in  
10 collaboration with statewide associations representing nursing homes as  
11 defined in section 38-2414 and other stakeholders. The department shall  
12 meet with such associations prior to October 1, 2024, to identify any  
13 statutes, rules, regulations, or other regulatory barriers that impede  
14 the development of an intergenerational care facility in which nursing  
15 services and child care are provided and develop recommendations to  
16 remediate such barriers that do not impact the safety of the staff or  
17 recipients of the nursing services and child care or the quality of  
18 nursing services and child care.

19           (3) The grants shall be awarded to facilities that are nursing homes  
20 as defined in section 38-2414 or assisted-living facilities as defined in  
21 section 71-5903 and that have been certified for participation in  
22 medicare or medicaid. The grants shall be used for one-time startup or  
23 expansion costs to provide for child care in such facilities. A facility  
24 may be awarded one grant under this section of up to one hundred thousand  
25 dollars. The grants shall be awarded for modification of structures,  
26 modification of outside campus space of the nursing facilities, purchase  
27 of child care equipment and supplies, or any combination of such  
28 purposes. A facility that is applying for or awarded a grant is not  
29 required to own or operate the child care services for which the grant is  
30 awarded.

31           (4) The department shall award the grants to nonprofit and

1 ~~proprietary facilities~~ on the basis of date of application ~~with priority~~  
2 ~~given to rural communities, as defined in section 81-1228, for~~  
3 ~~applications filed on the same date.~~ A facility that was cited for  
4 substandard quality of care during its most recent survey is not eligible  
5 for a grant under this section. Each grant recipient shall establish a  
6 plan to participate in the quality rating and improvement system  
7 described in section 71-1956 within three years after the date the grant  
8 is awarded.

9       **Sec. 2.** Original section 81-3145, Reissue Revised Statutes of  
10 Nebraska, is repealed.